

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM HI HEAVY INDUSTRIAL TO CB COMMUNITY BUSINESS FOR LOT 3, BLOCK 1, CHEYENNE BUSINESS PARKWAY, FIRST FILING, CHEYENNE, WYOMING (LOCATED WEST OF AND ADJACENT TO PROGRESS CIRCLE, NORTH OF CAMPSTOOL ROAD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 17, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 3, Block 1, Cheyenne Business Parkway, First Filing, Cheyenne, Wyoming is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT
“Green House Data”
Summation

Zone District Map Amendment Process

CASE NUMBER: UDC-13-00194
FILE CODE: CHBP-Z
PREPARED BY: Donna Ferguson
MEETING June 17, 2013 – Planning Commission
DATES: June 24, 2013 – City Council

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

SUMMARY:

The applicant is requesting a zone change from CB Community Business to HI Heavy Industrial for a vacant 2.15 acre site located at the eastern edge of the City in the Cheyenne Business Parkway. The applicant is proposing to expand an existing data center over two parcels which have different zone district designations; One being HI and the other CB. In order to enable the data center expansion, the applicant needs to obtain a consistent zoning designation across the two parcels. The subject parcel is located within an HI district however it is surrounded by a CB zone district to the west, south and east. Nearby land uses consist of a distributor and manufacturer of agricultural chemicals, an industrial parts distributor, a satellite internet dish site and a satellite uplink and broadcast center. While the future land use plan indicates an HI zone district for this parcel, the property is situated within an area that could support a CB zone district for the following reasons: The subject property is located adjacent to a CB zone district on three of four sides. Existing land uses in the vicinity such as manufacturing, distributing and satellite services are compatible with the proposed data center expansion and lastly, the parcel is large enough to accommodate any necessary buffer and setback requirement between it and the HI zone district located to the north.

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from HI Heavy Industrial to CB Community Business pursuant to the review criteria outlined in Article 2, Section 2.2.1.d of the Cheyenne Unified Development Code (UDC).

STAFF REPORT

“Green House Data”

Zone District Map Amendment Process

CASE NUMBER: UDC-13-00194 **File Code:** CHBP-Z

PREPARED BY: Donna Ferguson

SUBMITTAL DATE: May 17, 2013

PRE-APP MEETING: May 6, 2013

MEETING DATES: June 17, 2013 – Planning Commission
June 24, 2013 – City Council

OWNER/APPLICANT: Cheyenne Leads
PO Box 1045
Cheyenne, WY 82003
638-6000

AGENT: Brad Emmons
AVI, p.c.
1103 Old Town Lane, Suite 101
Cheyenne, WY 82009
634-6017

WORK DESCRIPTION: Zone Change from HI, Heavy Industrial to CB, Community Business

DOCUMENTS: Application, Zone Change Map

OTHER: Adjacent property owners were notified by mail

LEGAL: Lots 3, Block 1, Cheyenne Business Parkway, Cheyenne, Wyoming

LOCATION: West of and adjacent to Progress Circle, north of Campstool Road

PROPERTY SIZE: 2.51 acres

CURRENT ZONING: Heavy Industrial (HI)

PROPOSED ZONING: Community Business (CB)

LAND USE: Vacant

PROPOSED LAND USE: Data center expansion

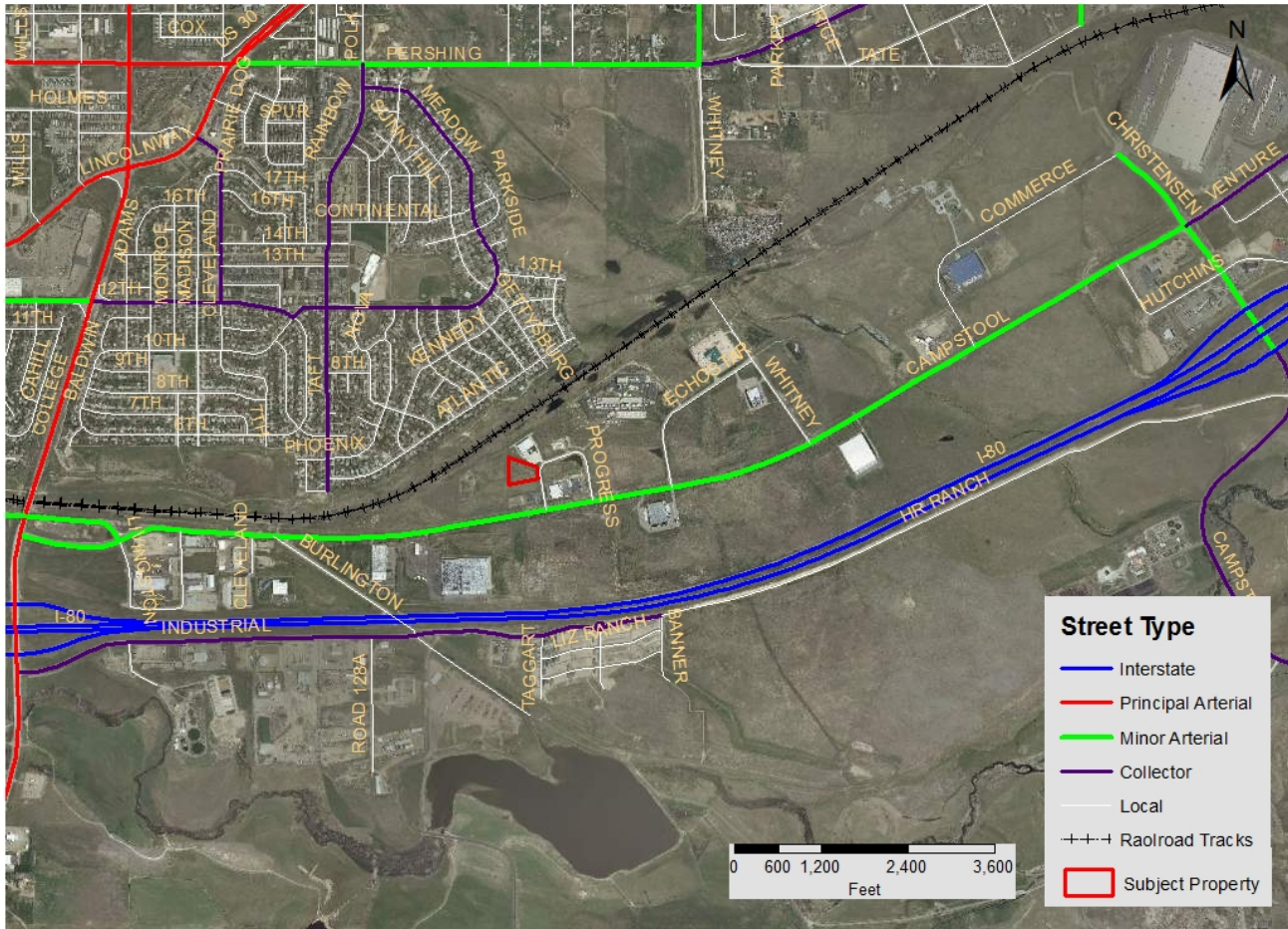
SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Agricultural chemicals distributor & manufacturer	HI	City
South	Vacant, Data center	CB	City
East	Vacant	CB	City
West	Vacant	CB	City

ZONE CHANGE DATA:

The applicant is requesting a Zone District Map Amendment (Zone Change) from HI Heavy Industrial to CB Community Business for a vacant 2.51 acre site. The zone change is being pursued in order to enable Green House Data Center, located south of the subject property, to expand their operations.

Green House Data



The subject property is part of the Cheyenne Business Parkway, a 900 acre master planned business park which is overseen by Cheyenne LEADS. Cheyenne LEADS is a private, not-for-profit economic development organization serving as the economic development entity for the City of Cheyenne and Laramie County with a goal of bringing progress and prosperity to the entire community of Laramie County.

Adjacent to the subject property to the north is Van Diest Supply Company which is a distributor and manufacturer of agricultural chemicals (www.vdsc.com). Adjacent to the west, south, and east is vacant land. Other land uses in the near vicinity are the Green House Data Center which resides two lots to the south and Motion Industries, an industrial parts distributor which resides to the southeast. To the northeast reside a Wildblue satellite internet dish site and an EchoStar uplink and broadcast center.

The subject property is currently zoned Heavy Industrial (HI) as is the property located to the north, however, to the west, south and east resides a Community Business zone district (CB).

The HI zone district is intended for uses of very high intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the use. The HI zone district is applicable to larger land areas that are remote from other differing or incompatible uses to minimize the potential for incompatible and negative impacts of uses in the district. The HI zone district is appropriate in areas with access to major regional transportation infrastructure, specifically areas designated Industrial in the Comprehensive Plan.

The property owner is pursuing a zone change in order to enable Green House Data Center to expand their operations. The Green House Data Center proposes to develop a data center which will provide space, power, cooling, and physical security for computer server, storage, and networking equipment of businesses and to connect them to a variety of telecommunications and network service providers. Additionally, Green House Data Center is completely powered by wind energy (www.greenhousedata.com).

The data center expansion is proposed to be developed across two different vacant lots; the subject property and the adjacent property to the south. Currently, the subject property is zoned HI while the adjacent property to the south is zoned CB. The applicant needs to obtain a consistent zoning designation across the two parcels in order to develop the intended expansion of Green House Data Center.

Data centers such as these are considered office-general uses and permitted by right in the CB, CBD, LI, HI, MUB and MUE zone districts. In order to enable the development of this use the applicant is requesting a zone change from HI to CB.

The CB zone district is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The CB zone district is applicable to areas where moderate- or large-scale business uses are appropriate such as areas designated Community Business in the Comprehensive Plan.

ShapeCheyenne, the City's future land use plan, identifies this area as Industrial. The Industrial category encompasses the heavier and light industrial areas and generally provides a location where less restrictive regulations are applied. Appropriate uses for this category are offices, distribution and warehouses, and manufacturing and fabrication. Industrial areas should be located with access to major transportation facilities, such as interstates and railroads. Appropriate zone districts for the Industrial

category include Light Industrial (LI) , Heavy Industrial (HI), Mixed Use (MU) and Planned Unit Development (PUD) zone districts (ShapeCheyenne, 3-20).

While CB is not an applicable zone district in the Industrial category, the property is situated within an area that could support a CB zone district based on its location and the existing development pattern of the area. For instance, the subject property is located adjacent to a CB zone district on three of four sides. The proposed data center expansion is compatible with the existing land uses in the area such as manufacturing, distributing and satellite services. Furthermore, the proposed data center expansion would help further economic development in the City of Cheyenne.

Pursuant to Article 2, Section 2.2.3b1 and Article 3, Section 3.1.1c1, due to the new use and building associated with this application a Site Plan and a Transportation Worksheet, at a minimum, shall be required at the time of development. In addition, right-of-way improvements along Progress Circle will also be required, the details of such would be determined during the site plan review process.

Pursuant to Article 5, Sections 5.4.2d and 5.5.2d, there are no lot area, lot frontage or building height zoning requirements in the CB or HI zoning districts. However, the CB zone district has a 25' setback requirement from all property lines adjacent to streets while the HI zone district has a 40' setback requirement. Additionally, the maximum lot coverage requirement for the CB zone district is 85% while the HI zone district is 90%. Given the location, size and shape of the subject parcel, the zoning regulations for either zone district are capable of being met.

Pursuant to Article 6, Section 6.3.5a (Table 6-10), a level 2 screening and buffering requirement between the common property lines of a CB and HI zone district is required. If this zone change request is approved it would create dissimilar zone districts between the subject property (CB) and the property to the north (HI) which did not exist before. Pursuant to Article 6, Section 6.3.5d2 the applicant would be responsible for providing and installing the required screening and buffering elements between the two zone districts. Given the subject property's size, it is expected that the application would be able to meet the landscape width, plant materials and the intent of the design standards associated with the level 2 design standards outlined in Article 6, Section 6.3.5b (Table 6-11).

Pursuant to Article 6, Sections 6.9.2a and 6.9.3a-b, in the CB zone district, where site development occurs without subdivision of land and where the lot does not have access to the Civic Open Space systems, open space shall be provided on the lot. Given the lot's square footage and proposed zone district, open space in the amount of 8% of the building footprint would be required. Furthermore, on-site open space shall meet the Type and Design Standards suitable for different zone districts and contexts outlined in Article 4, Tables 4-15 and 4-16. It is expected that the application will be able to meet the on-site open space requirement and will be addressed with the site plan submittal.

ZONE CHANGE REVIEW CRITERIA ANALYSIS:

In reviewing, providing comments, and making recommendations and decisions on a proposed zoning map amendment, the staff, Planning Commission and City Council shall use the following criteria:

1. The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

While CB is not an applicable zone district in the Industrial category, the property is situated within an area that could support a CB zone district based on its location, the existing development pattern of the area and its size. For instance, the subject property is located adjacent to a CB zone district on three of

four sides. The existing land uses in the vicinity such as manufacturing, distributing and satellite services are compatible with the proposed data center expansion. In addition, the proposed data center expansion would help further economic development in the City of Cheyenne. Lastly, the parcel is large enough to accommodate any necessary buffer and setback requirement between it and the HI district to the north.

2. The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The proposed data center expansion is largely compatible with nearby property. Nearby property consist of a distributor and manufacturer of agricultural chemicals, an industrial parts distributor, satellite internet dish sites and vacant CB zoned parcels. Additionally, a site plan for the proposed use would be required at the time of development which would require design elements to mitigate any potential conflicts between adjacent CB uses and HI uses.

3. The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

The parcel is able to meet the lot and building standards of either the HI or CB zone districts. In addition, the proposed use is permitted in either the HI or CB zone district.

4. The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

The subject property and surrounding vicinity are already platted and established with streets, lots and blocks and are largely served by necessary infrastructure such as utilities, sewer and storm drainage. Furthermore, the subject property is capable of meeting the required Civic Open Space associated with the CB zone district by providing on-site open space. As such a zone change to CB would be able to meet the Subdivision Standards outlined in Article 4, Section 4.1.3.

5. The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The proposed data center facility is able to support both the intent and applicability statements of the CB zoning district as it represents an office use which serves regional business functions. Additionally, the site is capable of achieving both the site design regulations of Article 6 and the more specific open-space and building design objectives associated with the General Commercial Design Standards.

6. The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

The CB zone district provides for a range of development opportunities including Retail, Employment, Service and Civic uses. It is expected that the data center as well as any other permitted uses will be able to meet all applicable standards for development in the CB zoning district.

7. The review and recommendations of other reviewing bodies.

No comments were offered by reviewing bodies.

8. Whether the application will harm the public health, safety, or general welfare.

Granting the zone change request from Heavy Industrial (HI) to Community Business (CB) will not harm the public health, safety, or general welfare.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

None

REVIEWING AGENCIES WITH NO COMMENT:

Attorney's Office
Development
Drainage Engineering
General Engineering
Traffic Engineering
GIS Engineering
Metropolitan Planning Office
Urban Planning

REVIEWING AGENCIES NOT RESPONDING:

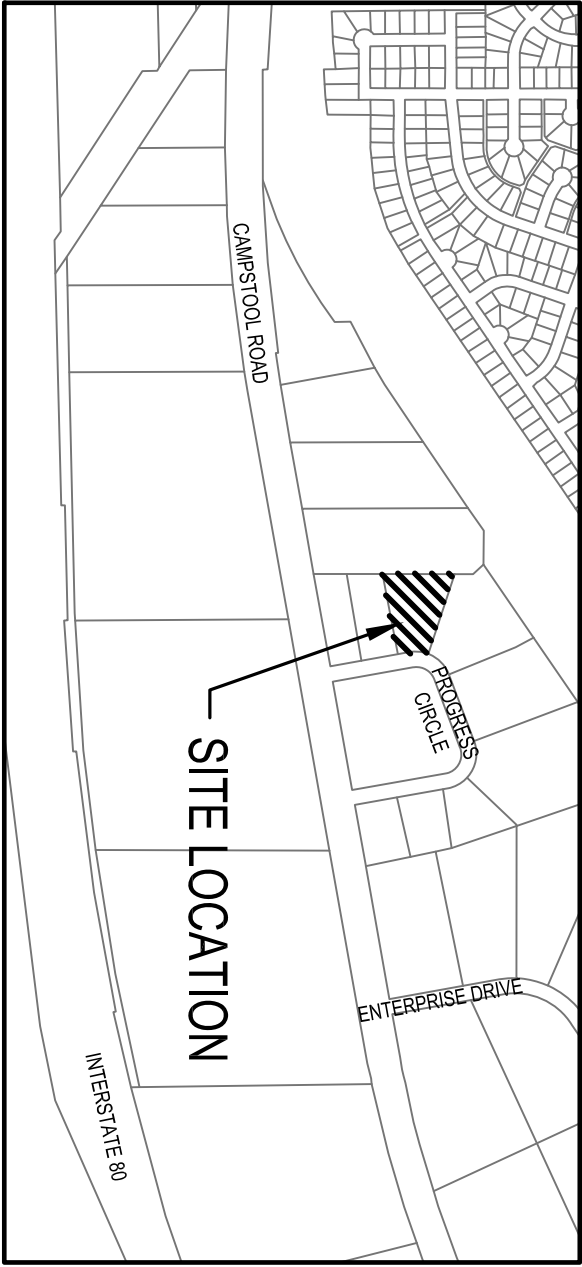
None

OTHER COMMENTS RECEIVED:

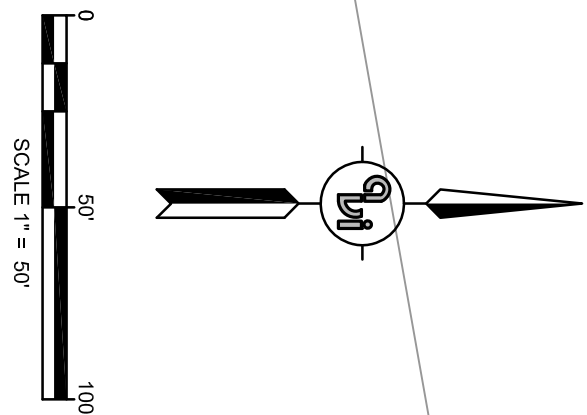
None

Encl: Staff Aerial Map
Zone Change Map
Applicant Criteria Response

cc: Owner/Applicant
Files: CHBP-Z, UDC-13-00194



VICINITY MAP
SCALE 1" = 1000'



COMPUTATION TABLE

TOTAL SITE AREA - 2.51 AC.
BUILDING AREA - TO BE DETERMINED
PARKING PROVISIONS (INCLUDE HANDICAP) - TO BE DETERMINED
LANDSCAPED AREA - TO BE DETERMINED
ESTIMATED TRIPS PER DAY - TO BE DETERMINED

NOTE
SITE IS CURRENTLY VACANT.
SITE IS BEING REZONED TO EXPAND THE
EXISTING FACILITIES AT 304 PROGRESS CIRCLE.

ZONING
CURRENT ZONING: HI
PROPOSED ZONING: CB

OWNER
CHEYENNE LEADS
PO BOX 1045
CHEYENNE, WY 82003-1045

LEGEND

ZONE CHANGE AREA

ZONE CHANGE
FOR
LOT 3 BLOCK 1
CHEYENNE BUSINESS
PARKWAY, FIRST FILING

BEING SITUATED IN A PORTION OF SECTION 2, TOWNSHIP 13 NORTH,
RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN,
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED MAY, 2013

NO.	REVISION	DATE

PREPARED FOR:
SHAWN MILLS
GREEN HOUSE DATA
304 PROGRESS CIRCLE
CHEYENNE WY, 82007

PROJECT: GREEN HOUSE DATA	DRAWING TITLE: ZONE CHANGE
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engineering
planning
surveying

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DATE: MAY 2013
DRAWN BY: CI
DESIGNED BY: CI
CHECKED BY:
JOB NO.: 2-3510